

Sandeep Kumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 5 April 2025 · 2025:AHC:48694-DB · Writ - C No. 9765 of 2025 · **Writ disposed; petitioner directed to Clause 6.5; authority to decide within six weeks.**

HEADNOTE

On a writ seeking decision of an electricity-bill objection and restoration of supply, the Division Bench disposed of the petition by directing the consumer to approach the concerned authority under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005, with a time-bound direction to decide any application filed within two weeks.

FACTUAL SUMMARY

Sandeep Kumar, a consumer, filed a writ petition in the Allahabad High Court against the State of Uttar Pradesh and two others. He sought a mandamus directing Respondent No. 2 to decide his objection dated 22 February 2025 against an alleged erroneous electricity bill within a time fixed by the Court, and a further mandamus to restore his electricity connection. Counsel for both sides were heard on 5 April 2025.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-objection

HOLDING

A writ seeking decision of a bill objection and restoration of supply is disposed of by directing the petitioner to approach the concerned authority under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005; if an application is filed within two weeks, the authority shall consider and decide it in accordance with law within six weeks after giving the petitioner a hearing. ¶ 3

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 On a writ seeking decision of an electricity-bill objection and restoration of supply, the Division Bench disposed of the petition by directing the consumer to approach the concerned authority under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILL WAS ERRONEOUS AND WHETHER SUPPLY OUGHT TO BE RESTORED

Left to the Clause 6.5 authority on a fresh application; the Court did not decide the 22.02.2025 objection or the restoration prayer on merits. ¶ 3